

(29)

Tentative Ruling

Re: ***In re: Jaxon Davis***
Superior Court Case No. 26CECG00454

Hearing Date: July 30, 2026 (Dept. 503)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To grant the petition and sign the proposed order. No appearances necessary.

The court sets a status conference for Wednesday, October 28, 2026, in Department 503, for confirmation that the minor's funds have been invested as set forth in the petition. If petitioner files a declaration or documentation, at least five court days before the status conference, showing that the funds have been invested as ordered, the status conference will come off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 7/28/2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Thompson v. Mattress Firm, Inc. et al.***
Superior Court Case No. 25CECG05614

Hearing Date: July 30, 2026 (Dept. 503)

Motion: (1) By Plaintiff Daniel Thompson to Compel Initial Responses
(2) By Plaintiff Daniel Thompson for Deemed Admissions

Tentative Ruling:

To continue to Wednesday, November 18, 2026, 3:30 p.m. in Department 503. The parties are directed to meet and confer as to whether the present action pending is affected by a related Judicial Council Coordination Proceeding.

Explanation:

Plaintiff Daniel Thompson, an individual and on behalf of himself and all others similarly situated ("Plaintiff") seeks to compel initial responses from defendant Mattress Firm, Inc. ("Defendant") for certain discovery. Defendant submits, among other things, that a motion to compel arbitration is pending. The court takes judicial notice of its own docket. A motion to compel arbitration is filed and pending hearing. Accordingly, good cause would exist to compel responses to discovery only to the extent that the discovery is necessary for the determination of whether an agreement to arbitrate exists or for defenses to enforcement of an agreement to arbitrate.

Nothing in the present papers suggests that the discovery at issue is for the limited purposes of determining whether the matter should proceed in arbitration, for which, an arbitrator would decide these matters. Rather, on brief review of the discovery at issue, the discovery appears to relate to the merits of the action. As Defendant's motion to compel arbitration is not presently before the court, the court takes no stance as to whether arbitration is appropriate. On balance, however and under its inherent powers regarding judicial economy, the court reserves the pending issues, to be heard concurrently with the pending and filed motion to compel arbitration. The matter is continued to November 18, 2026, 3:30 p.m. in Department 503. To the extent that any supplemental briefing may be implicated, the parties are granted leave to file a supplemental opposition and supplemental reply per Code time standards.

Independently, the court notes some concern regarding representations made in opposition. Counsel for Defendant represents that the claims of Plaintiff and his representative action may be the subject of a Judicial Council Coordination Proceeding. The parties are further directed to meet and confer as to whether the action pending will be affected by the Judicial Council Coordination Proceeding.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

